

PASSED

CHICKASAW TRIBAL LEGISLATURE
Permanent Resolution Number 39-006
Amendments to Title 6 of the Chickasaw Nation Code
(Emergency Custody)

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, the Chickasaw Tribal Legislature has previously enacted rules and regulations for emergency custody and desires to amend those rules and regulations.

NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature hereby authorizes and approves and adopts the following amendments to Title 6, Chapter 2, Section 6-203.2, of the Chickasaw Nation Code, all other sections and parts of sections to remain the same (additions are shown in red; deletions are stricken through; and omissions without deletions of substance are signified by “* * *”):

SECTION 6-203.2

EMERGENCY CUSTODY.

A. A Child may be taken into emergency custody prior to the filing of a petition, by an emergency temporary custody order issued by the Court upon an application from the Prosecutor supported by a sworn affidavit **or testimony**, stating facts sufficient to demonstrate to the Court that the Child’s continuation in the home of the Parent(s), Guardian(s), or Traditional Custodian(s) is contrary to the Child’s welfare and there is reasonable suspicion that:

1 the Child is in need of immediate protection due to an imminent safety threat, or

2. the circumstances or surroundings of the Child are such that continuation in the Child’s home or in the care or custody of the Parent(s), Guardian(s), or Traditional Custodian(s) would present an imminent safety threat to the Child.

The application and order may be verbal and upon being advised by the prosecutor or the court of the verbal order, law enforcement shall act on such order. If verbal, the prosecutor shall submit a written application along with a sworn affidavit and proposed order to the court within two (2) judicial days from the issuance of the verbal order. Upon approval, the application and order shall be filed with the court clerk.

* * *

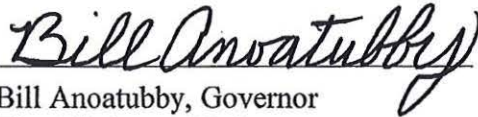
Executed in regular session of the Chickasaw Tribal Legislature, meeting at Ada, Oklahoma, on April 14, 2022, by a vote of 12 ayes, 0 nays and 0 abstentions.



Chairperson
Chickasaw Tribal Legislature



Secretary
Chickasaw Tribal Legislature

Concur: 
Bill Anoatubby, Governor
The Chickasaw Nation

Date: APR 18 2022

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Explanation

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This resolution authorizes taking emergency custody of children by verbal application and verbal order so long as a written application is submitted within the specified timeframe. Law enforcement may act upon a verbal order that is given.

Presented by:

Legislative Committee,
Chickasaw Tribal Legislature